

25STCV34646 25STCV34646

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-09-17

Motion: PLAINTIFFS' MOTION TO COMPEL FURTHER RESPONSES TO PLAINTIFFS' REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C731%2C09%2F17%2F2026

Source SHA-256: 6ead841d00f9546606595acf50bba75efcb45db5cb9a0776f71ac3f60827a406

Case Number: 25STCV34646 Hearing Date: September 17, 2026 Dept: 731

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

FOR THE COUNTY OF LOS
ANGELES - CENTRAL DISTRICT

ROBERT RANAEI, an individual,
and ELHAM ELLIE RANAEI, an individual,

Plaintiff(s),

vs.

VOLKSWAGEN GROUP OF AMERICA, INC.,
a New Jersey Corporation, and JONES BH ACQUISITION, LLC, a California Limited
Liability Company d/b/a AUDI BEVERLY HILLS, and DOES 1 through 10, inclusive,

Defendants.

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

CASE NO: 25STCV34646

[TENTATIVE] ORDER RE: PLAINTIFFS'
MOTION TO COMPEL FURTHER RESPONSES TO PLAINTIFFS' REQUEST FOR PRODUCTION OF
DOCUMENTS, SET ONE

Dept. 731

September 17, 2026

8:30 a.m.

Matter No. 15

Moving Party: Plaintiffs, Robert Ranaei and Elham Ellie Ranaei

Opposing Party: Defendant, Volkswagen Group of America, Inc.

Notice: OK

Background Facts

Plaintiffs Robert Ranaei and Elham

Ellie Ranaei sue Defendants Volkswagen Group of America, Inc. ("Volkswagen"), Jones BH Acquisition, LLC ("Audi Beverly Hills"), and Does 1 through 10 pursuant to a November 26, 2025, Complaint alleging four Song-Beverly Consumer Warranty Act ("SBA" claims) against Volkswagen and a negligent repair claim against Audi Beverly Hills.

Now before the Court is Plaintiffs

motion to compel further responses from Volkswagen related to Plaintiffs'

Requests for Production of Documents, Set One, which is opposed by Volkswagen.

The motion does not request monetary sanctions, nor does the opposition.

Motion to Compel

Further Responses

Meet and Confer

Despite opposition arguments to the

contrary (see Opposition, pp. 4-5), the Court determines that sufficient meet

and confer efforts preceded the filing of Plaintiffs' motion. (Motion, Hozven

Decl., ¶¶ 14-19, Ex. 4; see Code Civ. Proc., § 2031.310, subd. (b)(1); Code

Civ. Proc., § 2016.040.)

b. Separate

Statement

The Court also determines that a

Rule-appropriate separate statement accompanies the moving papers. (Motion,

Separate Statement; see Cal. Rules of Court, rule 3.1345(a); see also Code Civ.

Proc., § 2031.310, subd. (b)(3).)

c. Legal

Standard

A motion to compel a further

response is used when a party gives unsatisfactory answers or makes untenable objections to interrogatories, demands to produce, or requests for admission. (See Code Civ. Proc., § 2031.310, subd. (a); Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 403 (Sinaiko).)

To request further production, a movant must establish: (1) good cause for the production (Code Civ. Proc., § 2031.310, subd. (b)(1); Sinaiko, supra, at p. 403); and (2) that a further response is needed because (a) the responding party's statement of compliance with the demand to produce is incomplete (Code Civ. Proc., § 2031.310, subd. (a)(1)), (b) the responding party's representation that it is unable to comply is inadequate, incomplete, or evasive (Code Civ. Proc., § 2031.310, subd. (a)(2)), (c) the responding party's objection in the response is without merit or is too general (Code Civ. Proc., § 2031.310, subd. (a)(3); Catalina Island Yacht Club v. Superior Court (2015) 242 Cal.App.4th 1116, 1127), or (d) if the responding party objected to the production of ESI on the ground that it is not reasonably accessible the movant can show that the (i) ESI is reasonably accessible or (ii) there is good cause for production of the ESI regardless of its accessibility (Code Civ. Proc., § 2031.310, subd. (e)).

Discussion

i. RFP,
Set One, Nos. 1-7, 9-11, 13-25, 28-29

The Court GRANTS Plaintiffs' motion
as to RFP, Set One, Nos. 1-7, 9-11, 13-25, and 28-29.

The information sought—Nos. 1-7, 9-11, 13-14, subject vehicle information; Nos. 15-22, policies and procedures in SBA cases; Nos. 23-25, 28-29, warranty policy and procedures—are all relevant to claims and defenses for whether Volkswagen complied with, inter alia, repurchase or replace obligations under the SBA, as based on the facts alleged in the Complaint.

The responses are not deficient insofar as they are qualified by the statement, "and to which no objection has been made will be included in the attached document production," where sufficiently similar language appears in the Code. (See Code Civ. Proc., § 2031.220.) However, the responses are vague as to identification of responsive documents.

The responses to Request Nos. 1-7, 9-11, and 13-14 appear to seek to offer statements of compliance and then identify the production at issue by using the signal, "See." This is more detrimental than helpful to Volkswagen insofar as the California Style Manual designates the "See" signal as used to "precede citations to cases that only indirectly support the text, citations to supporting dicta, and citations to a concurring or dissenting opinion" and "never [to be] use[d] [...] to support a direct quote." (Edward W. Jessen et al., California Style Manual (4th ed. 2000) Introductory Signals, § 1.4 at pp. 9-10m emphasis added.) Because we have an uncertain identification of responsive documents, the responses are further uncertain insofar as responding whether the production is made in whole or in part and the reasons therefor. (See Code Civ. Proc., §§ 2031.210-2031.240.)

The responses to Request Nos. 15-25 and 28-29 similarly appear to seek to offer statements of compliance but these are followed by the Latin abbreviation "i.e.," and vague identification of documents without reference to Bates numbers or other identifiers that would allow Plaintiffs to reasonably identify the documents being referenced in the response. Again, because we have an uncertain identification of responsive documents, the responses are uncertain insofar as responding whether the production is made in whole or in part and the reasons therefor. (See Code Civ. Proc., §§ 2031.210-2031.240.)

To the extent there are any privilege issues, they must be identified in a privilege log. (Code Civ. Proc., § 2031.240, subds. (c)(1)-(2).) While Volkswagen argues that it need not provide a privilege log for communications with counsel (see, e.g., Opposition, Separate Statement, 10:2-5), Volkswagen fails to point to any exception in the Code or case law in support of its position. Neither has Volkswagen filed a motion for protective order based on undue burden or some other like basis.

The Court finds no merit to Volkswagen's overbreadth, vagueness, ambiguity, and relevance objections, which are generally stated and not supported within the context of relevance discussed above.

The execution of a protective order should allay concerns regarding trade secrets and confidential and proprietary information.

Third-party information,
specifically and strictly limited to identifying information such as names, contact
information, and like details, may be redacted to allay privacy concerns.

Absent convincing arguments
otherwise, the Court restricts emails from production due to the expansive
nature of such a search and the intrusion this would cause beyond the scope of
this action.

Relief is warranted under these
circumstances.

ii. RFP,
Set One, No. 12

The Court DENIES Plaintiffs' motion
as to RFP, Set One, No. 12.

Defendant's response to RFP, Set
One, No. 12, indicates that after a diligent search and reasonable inquiry,
other than photographs of the subject vehicle included with repair orders or as
part of the customer service file, Volkswagen has failed to locate responsive
documents as they have never been in its possession, custody, or control. This
is sufficiently responsive under the Code as to disfavor relief.

iii. RFP,
Set One, Nos. 8, 31

The Court GRANTS Plaintiffs' motion
as to RFP, Set One, Nos. 8 and 31.

Request No. 8 is relevant as
discussed above.

Request No. 30 is relevant. Such
knowledge could affect a determination relating to whether repurchase or
replacement should have been more seriously contemplated by Volkswagen. If
Volkswagen had knowledge of ongoing defects, it was not able to conform to
warranty in the subject vehicle model, make, and year generally and those same

defects arose and were not curable in Plaintiffs' vehicle, and if Volkswagen nevertheless failed to replace or repurchase Plaintiffs' Vehicle, the sought-after civil penalties sought by Plaintiffs could be justified. As such, the information is relevant, though the Court limits that information to the State of California, and the same year, make, and model.

Separately, these responses suffer from the substantive defect that they promise to produce select documents without providing a statement of compliance to the entire request for production at issue. (See Code Civ. Proc., § 2031.210, subd. (a)(1).)

To the extent there are any privilege issues, they must be identified in a privilege log. (Code Civ. Proc., § 2031.240, subds. (c)(1)-(2).)

The Court finds no merit to Volkswagen's overbreadth, vagueness, ambiguity, and relevance objections, which are generally stated and not support within the context of relevance discussed above.

The execution of a protective order should allay concerns regarding trade secrets and confidential and proprietary information.

Third-party information, specifically and strictly limited to identifying information such as names, contact information, and like details, may be redacted to allay privacy concerns.

Absent convincing arguments otherwise, the Court restricts emails from production due to the expansive nature of such a search and the intrusion this would cause beyond the scope of this action.

Relief is warranted under these circumstances.

iv. RFP,
Set One, Nos. 26, 27, 30

Request Nos. 26, 27, and 30, to which Volkswagen provided objection-only responses, are relevant as discussed above, with the Court qualifying Request No. 30 to California, etc., as discussed above in relation to Request No. 31.

To the extent there are any privilege issues, they must be identified in a privilege log. (Code Civ. Proc., § 2031.240, subds. (c)(1)-(2).)

The Court finds no merit to Volkswagen's overbreadth, vagueness, ambiguity, and relevance objections, which are generally stated and not supported within the context of relevance discussed above.

The execution of a protective order should allay concerns regarding trade secrets and confidential and proprietary information.

Third-party information, specifically and strictly limited to identifying information such as names, contact information, and like details, may be redacted to allay privacy concerns.

Absent convincing arguments otherwise, the Court restricts emails from production due to the expansive nature of such a search and the intrusion this would cause beyond the scope of this action.

Relief is warranted under these circumstances.

e. Conclusion

Plaintiffs Robert Ranaei and Elham Ellie Ranaei's motion to compel further discovery responses is GRANTED, in part, as follows:

(1) GRANTED as to Requests for Production of Documents, Set One, Nos. 1-11 and 13-31;

(2) DENIED as to Request for
Production of Documents, Set One, No. 12.

Specifically as to Requests for
Production of Documents, Set One, Nos. 1-11 and 13-14, Defendant Volkswagen
Group of America, Inc. SHALL serve Code-complaint responses on Plaintiffs
within 21 days of the date of this Order.

Specifically as to Requests for
Production of Documents, Set One, Nos. 15-31, this Order is conditioned on the
execution of a protective order by the parties, which SHALL be signed by the
Court no later than 21 days after the date of this Order. Defendant Volkswagen
Group of America, Inc. SHALL serve Code-complaint responses on Plaintiffs
within 21 days of this Court signing any protective order.

Plaintiffs Robert Ranaei and Elham
Ellie Ranaei are ordered to give notice.

Parties who intend to submit
on this tentative must send an email to the court at smcdept731@lacourt.org indicating intention to submit on the tentative
as directed by the instructions provided on the court website at www.lacourt.org. If
the department does not receive an email indicating the parties are submitting
on the tentative and there are no appearances at the hearing, the motion may be
placed off calendar. If a party
submits on the tentative, the party's email must include the case number and
must identify the party submitting on the tentative. If the parties do not submit on the
tentative, they should arrange to appear remotely.

DATED: September 17, 2026 _____

MARK C. KIM

Judge of the
Superior Court